

Jogendra v. State of Uttar Pradesh

High Court of Judicature at Allahabad · Division Bench · 28 January 2026 · Writ-C No. 2739 of 2026 · **Writ dismissed with liberty to approach Executive Engineer under Clause 6.5.**

HEADNOTE

Writ dismissed with liberty to approach the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005; any such application to be decided in accordance with law within four weeks. The Court did not adjudicate the petition on merits.

FACTUAL SUMMARY

The petitioner, Jogendra, filed Writ-C No. 2739 of 2026 in the Allahabad High Court against the State of Uttar Pradesh and two others. At the hearing, counsel for respondent nos. 2 and 3 submitted that the petitioner had an alternative statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The order does not record the nature of the underlying electricity grievance. Counsel for the petitioner, those respondents, and the Standing Counsel were present.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

alternative remedy under Clause 6.5

HOLDING

Where an alternative statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005 is raised, the writ is dismissed with liberty to approach the Executive Engineer under that clause; any such application shall be decided in accordance with law within four weeks of production of a certified copy, and the High Court does not adjudicate the petition on merits. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED —

¶ 5